

FILED

JUN 15 2026

CLERK, U.S. DISTRICT COURT
WESTERN DISTRICT OF TEXAS
BY fr **DEPUTY**

KOSTIANTYN MARS
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Austin, TX 78727
Phone Number: 202.505.9444
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KOSTIANTYN MARS, PRO SE

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

1:26 CV 01624 RP

KOSTIANTYN MARS

Removing Defendant / Movant,

vs.

THE PEOPLE OF THE STATE OF
CALIFORNIA,

Respondent.

Case No.: B2402220

**MOTION TO DISMISS CRIMINAL CASE
B2402220
(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983;
Fed. R. Civ. P. 81)**

**DATE:
TIME:
DEPT:**

**MOTION TO DISMISS CRIMINAL CASE B2402220
(28 U.S.C. § 1441 et seq.; 42 U.S.C. § 1983; Fed. R. Civ. P. 81)**

Movant Kostiantyn Mars respectfully moves this Court to dismiss Santa Clara County Superior Court Criminal Case No. B2402220 with prejudice and to expunge all related warrants and records.

The facts supporting this motion are set forth in detail in the Consolidated Evidence Binder – Exhibit A, Set 3 (Volume 4), Exhibits A-24 through A-38, filed concurrently herewith.

I. LEGAL BASIS

The criminal prosecution rests entirely on an alleged violation of a Domestic Violence Restraining Order dated November 28, 2023. That order is void ab initio under California Code of Civil Procedure § 170.4(d) because it was signed by disqualified Judge Andrea Flint after a timely Statement of Disqualification was filed on November 13, 2023.

A void order cannot support a criminal charge under Penal Code § 273.6. Consequently, the charging document fails to state a public offense (Penal Code § 1004). Dismissal is therefore warranted in the furtherance of justice (Penal Code § 1385) and to prevent further deprivation of Movant's federal constitutional rights (42 U.S.C. § 1983).

This Motion is supported by the Consolidated Evidence Binder - Exhibit A filed concurrently herewith, which contains the Statement of Disqualification, the void DVRO, the February 7, 2024 hearing transcript demonstrating extortion and threats of malicious prosecution, video evidence of the unlawful arrest and denial of hearings, and all other evidence establishing the legal defect and due process violations.

II. RELIEF REQUESTED

Movant respectfully requests that the Court:

1. **Dismiss** Criminal Case B2402220 with prejudice.
2. **Quash** and expunge all related warrants and records.
3. **Grant** such other and further relief as the Court deems just and proper.
4. In light of the documented pattern of racketeering and retaliation, threats of unlawful incarceration, and systemic corruption within the Santa Clara County Superior Court, Plaintiff respectfully requests that **any hearing** on the Emergency Motion for Temporary Restraining Order or the Motion to Dismiss Criminal Case B2402220 **be conducted remotely by video with mandatory audio and video recording** by the Court. This safeguard is necessary to protect Plaintiff's safety, prevent further violations of due process, and ensure independent federal oversight of the proceedings.

Respectfully submitted,


KOSTIANTYN MARS
Pro Se

DATED: June 10, 2026

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7
8 **DECLARATION OF KOSTIANTYN MARS**
9 **(28 U.S.C. § 1746 / CCP § 2015.5)**

10 I, Kostiantyn Mars, declare under penalty of perjury under the laws of the United States that
11 the foregoing Motion is true and correct to the best of my knowledge and belief. The facts and
12 supporting evidence are contained in the Consolidated Evidence Binder - Exhibit A filed
13 concurrently herewith.

14 Executed on June 10, 2026 at Austin Texas.

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18 Kostiantyn Mars, Declarant
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UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

KOSTIANTYN MARS	)	Case No.: B2402220
	)	(Santa Clara County Superior Court)
Removing Defendant / Movant,	)	
	)	PROPOSED ORDER
vs.	)	GRANTING MOTION TO DISMISS
	)	CRIMINAL CASE B2402220
THE PEOPLE OF THE STATE OF	)	
CALIFORNIA,	)	
Respondent.	)	

PROPOSED ORDER
GRANTING MOTION TO DISMISS CRIMINAL CASE B2402220

Came on for consideration Movant's Motion to Dismiss Criminal Case B2402220. Having reviewed the Motion, the Declaration of Kostiantyn Mars, Exhibit A (Evidence Binder), the Civil RICO Complaint, the Notice of Removal, and all other papers on file, the Court finds that good cause exists for the relief requested.

IT IS HEREBY ORDERED that Santa Clara County Superior Court Criminal Case No. B2402220 is **DISMISSED WITH PREJUDICE**.

IT IS FURTHER ORDERED that all related warrants and enforcement orders, including but not limited to:

- Criminal Bench Warrant issued August 21, 2024

1 - Criminal Arrest Warrant issued October 23, 2024

2 - Family Bench Warrant issued June 17, 2024

3 - Any and all other outstanding warrants or orders in Case B2402220

4 are hereby **QUASHED and EXPUNGED** from all records.

5
6 **IT IS FURTHER ORDERED** that the State of California and all its agencies shall take all
7 necessary steps to **expunge any and all records related to the dismissed case** from
8 law-enforcement and court databases within fourteen (14) days of the date of this Order.

9 **IT IS FURTHER ORDERED** that **any hearing** on this Motion to Dismiss, or on any related
10 motion in this case, **shall be conducted remotely by video with mandatory audio and video**
11 **recording** by the Court. This safeguard is necessary to protect Plaintiff's safety, prevent further
12 violations of due process, and ensure independent federal oversight of the proceedings.

13
14 **SO ORDERED** this _____ day of _____, 2026.

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18 UNITED STATES DISTRICT JUDGE

19 Western District of Texas
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UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

1:26-cv-01624-RP

KOSTIANTYN MARS	)	Case No.: B2402220
	)	(Santa Clara County Superior Court)
Removing Defendant / Movant,	)	
	)	PROPOSED ORDER
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	)	CRIMINAL CASE B2402220
THE PEOPLE OF THE STATE OF	)	
CALIFORNIA,	)	
Respondent.	)	

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18 UNITED STATES DISTRICT JUDGE

19 Western District of Texas
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